

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1993

By: Turner

AS INTRODUCED

An Act relating to crimes and punishments; amending 21 O.S. 2021, Section 540A, which relates to eluding peace officers; clarifying scope of certain unlawful act; updating language; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 540A, is amended to read as follows:

Section 540A. A. Any operator of a motor vehicle who has received a visual and audible signal, a flashing red light, flashing red and blue lights, flashing blue and white lights, or any other combination of flashing red, blue, and white lights, and a siren from a peace officer driving a motor vehicle showing the same to be an official police, sheriff, highway patrol or state game ranger vehicle directing the operator to bring the vehicle to a stop and who willfully increases the speed or extinguishes the lights of the vehicle in an attempt to elude such peace officer, or willfully attempts in any other manner to elude the peace officer, or who does

1 elude such peace officer, is guilty of a misdemeanor. The peace
2 officer, while attempting to stop a violator of this section, may
3 communicate a request for the assistance of other peace officers
4 from any office, department or agency. Any peace officer within
5 this state having knowledge of such request is authorized to render
6 such assistance in stopping the violator and may effect an arrest
7 under this section upon probable cause. Violation of this
8 subsection shall constitute a misdemeanor and shall be punishable by
9 not more than one (1) year imprisonment in the county jail, or by a
10 fine of not less than One Hundred Dollars (\$100.00) nor more than
11 Two Thousand Dollars (\$2,000.00), or by both such fine and
12 imprisonment. A second or subsequent violation of this subsection
13 shall be punishable by not more than one (1) year in the county
14 jail, or by a fine of not less than Five Hundred Dollars (\$500.00)
15 nor more than Five Thousand Dollars (\$5,000.00), or both such fine
16 and imprisonment.

17 B. Any person who violates the provisions of subsection A of
18 this section in such manner as to endanger any other person shall be
19 deemed guilty of a felony punishable by imprisonment in the ~~State~~
20 ~~Penitentiary~~ custody of the Department of Corrections for a term of
21 not less than one (1) year nor more than five (5) years, or by a
22 fine of not less than One Thousand Dollars (\$1,000.00) nor more than
23 Five Thousand Dollars (\$5,000.00), or by both such fine and
24 imprisonment.

1 C. 1. Any person who causes an accident, while eluding or
2 attempting to elude an officer, resulting in great bodily injury to
3 any other person while driving or operating a motor vehicle within
4 this state and who is in violation of the provisions of subsection A
5 of this section may be charged with a violation of the provisions of
6 this subsection. Any person who is convicted of a violation of the
7 provisions of this subsection shall be deemed guilty of a felony
8 punishable by imprisonment in ~~a state correctional institution~~ the
9 custody of the Department of Corrections for not less than one (1)
10 year and not more than five (5) years, and a fine of not more than
11 Five Thousand Dollars (\$5,000.00).

12 2. As used in this subsection, "great bodily injury" means
13 bodily injury which creates a substantial risk of death or which
14 causes serious, permanent disfigurement or protracted loss or
15 impairment of the function of any bodily member or organ.

16 SECTION 2. This act shall become effective November 1, 2025.

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